SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (C) No. 1031 of 2019 (YEAR: 2020)

CORAM: N.V. RAMANA, R. SUBHASH REDDY, B.R. GAVAI

Anuradha Bhasin
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Constitution of India, Code of Criminal Procedure, 1973, Indian Telegraph Act, 1885
Sections:	Article 19(1)(a), Article 19(1)(g), Section 144 CrPC

JUDICIAL HEADNOTE & SUMMARY

Held that access to the internet is constitutionally protected under Article 19(1)(a) and 19(1)(g). Indefinite internet suspensions are impermissible and must comply with proportionality and periodic review.

RATIO DECIDENDI

The Court held that: Held that access to the internet is constitutionally protected under Article 19(1)(a) and 19(1)(g). Indefinite internet suspensions are impermissible and must comply with proportionality and periodic review. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Anuradha Bhasin v. Union of India (W.P. (C) No. 1031 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, Code of Criminal Procedure, 1973, Indian Telegraph Act, 1885, particularly Article 19(1)(a), Article 19(1)(g), Section 144 CrPC. Held that access to the internet is constitutionally protected under Article 19(1)(a) and 19(1)(g). Indefinite internet suspensions are impermissible and must comply with proportionality and periodic review.

OPERATIVE ORDER

ORDER: Decided